सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 5 **Date:25.02.2019**

दिनांक 30.01.2019 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 30.01.2019

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 30.01.2019 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 30.01.2019 at 10.45 A.M. was presided over by Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री अरुण चौधरी/Shri Arun Choudhary उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. के. मोहन्ती/ Shri B. K. Mohanty सहायक आयुक्त, (जनरल)/Asst. Commissioner(General)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asst. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
Shri Mahendra M Kholwadwala सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
Shri K. D. Gohil/श्री एस. डी. गोहिल सहायक आयुक्त/Asst. Commissioner (APSC)	Airport Special Cargo, हवाई अड्डा विशेष कार्गो
Shri R. P. Borker/श्री आर. पी. बोरकर सहायक आयुक्त (आयात)/Asstt. Commissioner(Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Ashok Satavase, Cdr.Lokesh (Retd.), Mohamed Nasir, Shri Nandan Kanchan	MIAL (Custodian)
Shri Kaushal H. Thakker	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Ms. Jyotsna Patil	JET Airways
Shri Bala Ayer, Shri Vineet Agarwal, Mohsin G. Charania	ACAAI
Shri K. D. Dhule,	Air India & AIATSL
Ms. Jyotsna Patil	JET Airways
Shri Sanjay Patankar, Shri Prasad Gengusetti	Emirates Cargo
Shri Paresh Shah	WISA
Sandeep B.Kadam	Liladhar pasoo
Shri Sunil Kumar Singh	SBI
Mr.Zubin Daver	Cathay Pacific

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1. **Points discussed in the previous meeting**

A. Issuance of Registration Certificate for Consolidator at ACC:

In the previous meeting, the representative of BCBA submitted that the CBs at Air Cargo facing difficulty in obtaining themselves as a "Consolidator", CBs has to visit New Custom House to obtain the registration certificate as a consolidator. They requested that such arrangements should be made at ACC, Mumbai.

Additional Commissioner (Import) informed the house that matter is again taken up with Principal Commissioner of Customs (General), New Custom House, Mumbai Zone-I for an early reply. He informed that on receipt of the reply from Commissioner (General), NCH Mumbai, necessary action will be taken at Air Cargo Complex, Mumbai to resolve the issue.

[Action: Custom]

B. Touch Screen not functional:

In the previous meeting the representative of BCBA submitted that three touch screens/keyboard installed in Air Cargo Complex are not working from last three weeks and requested to make them in working conditions so that CBs can check the status of their import/export consignments with quick access to touch screen/keyboard.

Additional Commissioner (Import) informed the house that the requisite amount has already been sanctioned by the Commissioner (General), ACC, Mumbai and new touch screens/keyboards will be installed shortly.

(Action: Point Closed)

C. Discontinuation of DMS charges of NEWGEN SOFTWARE SERVICES TECHNOLOGIES LTD. (PN No.09/2016 dated 16.06.2016) after introduction of the E-Sanchit Programme:

In the previous meeting the representative of BCBA submitted that various Custom Brokers are requesting to discontinue DMS charges after compulsory uploading of documents under E-Sanchit. The point was raised in the PTFC meeting held on 24.04.2018. The review is pending from the Customs on the ground that many members are not submitting the proper documents under E-Sanchit. BCBA has issued the circular vide reference no. BCBA/CIR/507/2018 dated 04.07.2018 among the Customs Broker and advised them to upload the proper documents under the E-Sanchit. If the documents are found missing under the E-Sanchit, there is a facility to upload the missed out documents after filing of Bills of Entry. The association is requested to discontinue the DMS Charges at ACC, Mumbai like JNCH vide PN No. 104/2018.

Additional Commissioner (import) informed the house that the matter will be reviewed shortly.

(Action: Customs)

D. Time Bound schedule required for creation of Import Shed for General Cargo at ACC Mumbai:

In the previous meeting the representative of BCBA submitted that with a view to handle higher volumes at ACC Mumbai it is suggested that MIAL should provide facility for handling general import and export cargo with a bigger warehouse and truck docking area to the trade on urgent basis.

The representative of MIAL informed the house that they are already working on the design of Import Shed for General Cargo at Air Cargo Complex, Mumbai. The Commissioner (Export) asked the representative of MIAL to expedite the process to complete the demand of the trade as early as possible.

(Action: MIAL)

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E. Timely intimation of damaged cargo at the time of forwarding itself:

In the previous meeting the representative of BCBA submitted that intimation of damaged packages of import consignments are known only when the warehouse charges are paid online. The procedure of insurance survey is getting delayed by one or two day's minimum in absence of damage notice. The Custodian is requested to display the "damage notice" on the screen, so that while making online transaction with custodian, the members are aware to hold the survey of that particular damaged consignment quickly.

The Commissioner (Export) informed the house that both the Custodians i.e. MIAL and AIATSL should implement necessary procedure and resolve the issue by the next PTFC to enhance ease of doing business.

(Action: MIAL/Air India)

F. Air India/AIATSL is not issuing the Cargo Arrival Notice on or before arrival of the import consignments:

In the previous meeting the representative of BCBA submitted that Air India/AIATSL is not issuing the Cargo Arrival Notice on or before arrival of the import consignments, there is a delay happening when consignment is addressed to Bank A/c Importer's name. Air India/AIATSL is adamant to accept the request from the CB/Importer when the goods physically arrived but flight is not checked (even after four days of arrival) or location in the shed is not given to the packages. Each and every Airlines are proactive, they are issuing Cargo Arrival Notice on or before arrival to meet the requirements of the importer to clear their consignment without delay.

The Commissioner (Export) asked the representative of AIATSL to look in to the issue and take necessary action by the next PTFC.

(Action: Air India/AIATSL)

2. <u>New point taken for discussion in the meeting</u>

A. Singapore Airlines insisting for Demand Draft for payment of DO charges:

In the instant meeting the representative of BCBA submitted that Customs, ACC, Mumbai had issued Facility Notice No. 16/2016 dated 18.11.2016, wherein it is clearly stated that airline consolidation etc. should accept cheque from custom brokers for timely clearance. However trade members are facing difficulty in obtaining Delivery Orders from the Singapore Airlines, as they are insisting for payment through demand draft only and refuse to accept Cheque for payment. Because of a Bank Holiday or unable to reach to the office of the Singapore Airlines due to distance from the issuing Bank location the member are facing difficulty in obtaining Delivery Orders from Singapore Airlines.

The Commissioner (Export) suggested that a meeting between Airlines and BCBA should be convened to resolve the issue.

(Action: BCBA)

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B. Issue with EDPM:

In the instant meeting the representative of BCBA submitted that many a times Shipping Bills are not electronically transmitted to AD Bank. This may happen due to system errors or multiple LEOs of same shipping bills. In such cases, the bank does not release the exporter's payment on the strength of hard copy of Shipping Bills. They have informed that in similar situations in case of Bill of Entry, the bank allows outward remittance based on hard copy of Bill of Entry but does not allow inward remittance on the strength of manual Shipping Bills.

The Commissioner (Export) asked the trade representative to submit details of some Shipping Bills for further examination and for taking up the issue with the Director General of Systems.

(Action: BCBA)

C. Standard Operating Procedure required for processing Section 74 Shipping Bills in EDI:

In the instant meeting the representative of BCBA submitted that a SOP for processing section 74 Shipping Bills under EDI be made available, as there is no such specific procedure available.

The Commissioner (Export) informed that the matter will be taken up by the Director General of Systems.

(Action: BCBA)

D. Delay in unloading of export consignments:

In the instant meeting the representative of BCBA submitted that unloading of the export consignments are delayed due to lack of manpower and this causes extra demurrage charges to the shipper. MIAL should provide more man power so the unloading can be done quickly.

The representative of MIAL informed the house that they have sufficient staff and no such delayed occured. If any delay is there in any specific case, trade should inform MIAL. The Commissioner (Export) asked the representative of MIAL to check it out and verify whether any such things happened especially in cold storage area.

(Action: Point Closed)

E. Non Compliance of GST law by Air India:

In the instant meeting the representative of BCBA submitted that Air India is not complying with GST taxation laws at the time of collection of warehouse charges in cases of part clearance as GST number is not printed/mentioned on the bank challans and payment receipts.

The Commissioner (Export) informed the representative of AIATSL that GST no. should be printed on the Bank Challan and Receipt, generated by Air India. He further asked the representative of AIATSL to take necessary steps and the same should be resolved by the next PTFC.

(Action: AIATSL/Air India)

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F. Only Exporter's copy of Shipping Bill be printed at Export Shed, ACC, Mumbai:

In the instant meeting, the representative of ACAAI submitted that in the Export Shed they are still receiving three copies of the Shipping Bill (Customs Copy, Exporter's Copy and EP Copy). They requested to implement CBEC Circular 55/2016 dated 23.11.2016 and Public Notice 35/2017 dated 31.08.2017 issued by ACC, Mumbai. They suggested that Export Shed, ACC should print Exporter's copy only. They also informed the poor quality of the print and too many complaints from exporters and banks.

The Joint Commissioner of Customs (Export) informed that three copies of Shipping Bills are being generated automatically by the systems. Further, he informed that the issue will be taken up with the DG Systems.

The Additional Commissioner (Import) informed the trade representative that the matter already taken up with DG Systems regarding poor quality of print due to software issue. The Commissioner (Export) asked the MIAL to check up the print quality with different type of printer, specially with laser printer.

(Action: Point Closed)

G. Dispense with the check list as Export document and introduction of First Print of Shipping Bill for Examination:

In the instant meeting the representative of ACAAI submitted that for examination in the Export Cargo, they have to carry **i)** Invoice, **ii)** Packing List and **iii)** Check list. The information on the check list is the same as on the invoice. If any error is found on the check list, they requested that they should be allowed to amend the same on the spot by the concerned exporter by way of putting signature of authorised representative. Export consignment should not be held back for want of amended checklist. Penalty should not be levied as checklist is produced as Exporter's document. They submitted that they are submitting the check list to Customs to facilitate Export Examination even though the same information is already given on the invoice. They suggested to dispense with the check list as Export document.

While clearing an import cargo, they have the facility of taking out first print of the Bill of Entry which is the document used by customs for conducting the examination of the imported goods. Similar facility should be made available in exports as well. First print of the Shipping Bill should be made available which can then be made available for examination. The first print of the shipping bill is more authentic than the 'Check List'.

The Commissioner (Export) informed the house that the matter will be examined by the department.

(Action: Custom)

H. Procedure for surrendering MEIS similar to the procedure as introduced in Export for surrendering Drawback:

In the instant meeting the representative of ACAAI submitted that as per point b(i) of Public Notice 17/2018 dated 13 July 2018 issued by DGFT, MEIS has to be surrendered with Customs. They requested that any voluntary surrender of MEIS may be allowed to follow the same procedure as that of surrender of Drawback, as per PN 74/2018 dated 15.06.2018 issued by the Commissioner of Customs (Export), ACC, Mumbai. This will save a lot of time.

The Commissioner (Export) informed the house that the matter will be examined by the department and if need be there necessary instructions can be issued.

(Action: Custom)

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I. Provisions to upload documents such as Import invoice and packing List and import Airway bill in E-sanchit should be made available so that these documents are not to be presented manually for processing the Section 74 Drawback:

In the instant meeting the representative of ACAAI submitted that Section 74 shipping bills have to be filed in EDI as manual format is discontinued. They have requested that provisions to upload documents such as Import invoice and packing List and import Airway bill in E-sanchit should be made available so that these documents are not to be presented manually for processing the Section 74 Drawback. Currently there is no such provision for uploading these documents.

The Commissioner (Export) informed that it will require modification in ICES System and assured the representative of ACAAI that the point will be taken up with DG, System.

Point Closed)

3. Shri Paresh Shah informed that the trade and CBs have appreciated the procedure prescribed by S.O. 02/2019 for reduction of late fee equal to duty in terms of Notification No. 36/2018-Customs. He expressed his thanks to Customs for taking up the suggestion and easing the process of late fee waiver. He informed that other customs houses are also planning to replicate the same procedure at their ports.

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (आयात) और आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

सुखजीत कुमार 25/2/19

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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